ARUN KUMAR



NO CAN DO Bengal CM Mamata Banerjee and TMC MP Abhishek Banerjee at a press meet against SIR in Delhi, Feb. 3

The intervention follows months of mounting delays and litigation, with an unprecedented volume of "logical discrepancy" and "unmapped" cases. According to figures before the court, approximately 13.6 million entries were flagged during digitisation and cross-verification of data. Of these, nearly 4.5-5 million cases—about 7 per cent of the electorate—remain undecided. With the February 28 deadline for the final list pressing in, the bench observed that extraordinary measures were needed to protect the integrity of the franchise.

JUDGES TO THE FORE

Pursuant to this, the Calcutta High Court constituted three-member judicial panels in every district to scrutinise pending claims. Leave for judicial officers was curtailed, and additional deployment sought from the Odisha and Jharkhand high courts. Officials say between 150 and 294 serving and retired judges may be engaged across the state's 294 assembly constituencies. Reflecting judicial concern that the process be unfettered by local bottlenecks, the apex court directed district collectors and police superintendents to extend full logistical and security support.

Takeaways

- **Just days left for final EC voter list, but some 5 mn cases pending resolution**
- **Around 150-300 retired and serving judges to fan out to assist in EC process**

The EC informed the court that the discrepancies arose largely from the digitisation of legacy data and algorithmic matching of voter records, which threw up inconsistencies in spellings, parental details and address histories. It also acknowledged procedural difficulties, temporarily suspending hearings in certain categories of cases and reinserting them into the adjudication queue later. However, the gargantuan backlog prompted the court to step in.

In its oral observations, the bench noted that administrative inadequacies—or errors flowing from human or technological processes—could not be allowed to defeat the right to vote. As the bench put it, the goal is not to supplant the Election Commission (EC), but to ensure its constitutional commitment to principles of fairness, transparency and reasonableness is met.

Legal observers note the court's approach was calibrated well. It refrained from commenting on political allegations, focusing squarely on institutional accountability and outcome-oriented remedies. But it did serve to thicken the air of contestation. The Trinamool Congress (TMC) said the order validates their stand that the SIR was deployed to suit the BJP. On February 25, addressing a public event in Kolkata, Bengal CM Mamata Banerjee even expressed concern that the number of names which would be deleted due to SIR would exceed 12 million. The BJP, meanwhile, accuses the TMC of disrupting the process at the local level. ■